Tentative Rulings for August 26, 2026
Department 6

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 830 3643

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404917	SANTOS vs ALPHAMOTIVE MOTORS, LLC	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

C.C.P. §473.5 authorizes the court to grant relief where there has been proper service of summons but defendant did not get actual notice of the action in time to defend. This relief is usually sought when service was made by publication or by substitute service. According to the Declaration of Jean Pierre Castro "11280 Green Glen Street is the home of a family friend. I have kept it as a stable address of record over the years because I have moved frequently and wanted a fixed address, and it remained the address on my driver's license, which I never updated."

The proof of service filed with the Court on 2/7/2025 indicates that service was accomplished by substitute service on a male adult at the 11280 Green Glen Street address on 12/10/2024. Additionally, the Summons and Complaint were mailed to the address on 12/10/2024. The Court finds that service by substitute service was appropriate.

Relief under C.C.P. §473.5 must be sought within a "reasonable time" and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180.)

The Request for Entry of Default filed on 2/7/2025 indicates at section 6. "Declaration of mailing" that notice was mailed on 2/7/2025 to the 11280 Green Glen Street address. Accordingly, the 180 days ran in August of 2025. This request is untimely.
Section 473.5 applies only to defaults and default judgments and does not apply to other types of judgments. Section 473.5 is a procedural remedy by which a default or default judgment may be set aside; it does not apply to other types of judgments. (*Conseco Marketing, LLC v. IFA & Ins. Services, Inc.* (2013) 221 Cal.App.4th 831, 844.)

The notice of motion must be accompanied by a declaration showing defendant's lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (C.C.P. §473.5(b).) The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (*Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077-1078.)

The Court finds the lack of notice was due to inexcusable neglect on behalf of the movant.

Accordingly, the motion to set aside entry of default is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2407399	PYNE-HOWARD vs FCA US LLC	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT

Tentative Ruling:

Moving party: Defendant FCA US LLC
Responding party: Plaintiff Neea Pyne-Howard

Plaintiff Neea Pyne-Howard ("Plaintiff") brings this Song-Beverly action regarding a certified preowned 2019 Jeep Grand Cherokee that contained engine and other defects. Defendant FCA US LLC ("FCA") allegedly provided warranty coverage since 10/15/21. The operative complaint, filed 12/19/24, asserts: (1) Civ. Code § 1793.2(d); (2) Civ. Code § 1793.2(b); (3) Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty; (5) negligent repair (against Defendant DCH Chrysler Dodge Jeep Ram Fiat of Temecula); and (6) fraudulent inducement-concealment. Trial is not set.

Now, Defendants move for judgment on the pleadings and argue that all claims failed to state facts sufficient. For the first four causes of action, Defendants argue that they fail under *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 because Plaintiff purchased a *used* vehicle, and the Act's remedy applies only to new vehicles. Defendants argue that the first two causes of action are time barred. Defendants also argue that the 3rd and 5th causes of action lack supporting facts. They argue that the 6th cause of action does not plead fraud with particularity and is barred by the economic-loss rule and limitations period. They also move to strike punitive-damages allegations for insufficient facts.

In opposition, Plaintiff argues that FCA issued a new Certified Pre-Owned ("CPO") warranty with the sale. Plaintiff further argues that the repair, negligence, and fraud allegations are sufficient. She argues that *Dhital v. Nissan North Am., Inc*. (2022) 84 Cal.App.5th 828 supports her fraudulent inducement/concealment claim, and that the economic loss rule does not bar inducement. Alternatively, Plaintiff requests leave to amend.

In reply, Defendants argue that the complaint neither attaches nor alleges the issuance of a "certified pre-owned" warranty with Plaintiff's purchase. Even if it had, the pleading fails to establish that such a warranty is a new vehicle warranty under *Rodriguez*. They assert that the opposition relies on unpled facts. They contend that the remaining claims lack facts.

<u>Analysis</u>

A. Meet and Confer

Importantly, Code of Civil Procedure section 439(a) requires a movant to meet and confer in person, by telephone, or by videoconference prior to filing a motion for judgment on the pleadings. The moving party must file and serve with the motion a declaration indicating the means of the meet and confer, or that the opposing party failed to respond or meet and confer. (*Id*. at § 439(a)(3).) Defendants state that counsel spoke by telephone on 6/3/26. Defendants complied. (Kita Decl. ¶¶ 6-7.)

B. JOP

A defendant's motion for judgment on the pleadings may be made on the grounds that the court lacks jurisdiction, or that the complaint does not state facts sufficient. (Code Civ. Proc., § 438(c)(1)(B).) A motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061.) The grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice. (*Id*.)

Civil Code section 1793.22(e)(2) defines "new motor vehicle," i.e. "a new motor vehicle that is bought or used primarily for personal, family, or household purposes" or a "new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person" or a demonstrator or "other motor vehicle sold with a manufacturer's new car warranty."

In *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 196, the Supreme Court held: "We conclude that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of "new motor vehicle" unless the new car warranty was issued with the sale." The Court stated that if the Legislature had intended to include used cars with unexpired new car warranties, it would have done so. (*Id*. at 199.) In reviewing the statutory scheme for Song-Beverly, the Court acknowledged *consumer goods* to mean any "*new* product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables. [Citing Civil Code § 1791(a).]" (*Id*. at 200.) "For consumer goods (i.e., new products) that are defective," they are subject to express warranties under Civil Code section 1793.2(d)(1)." (*Ibid*.) There also implied warranty of merchantability (Civil Code § 1792) and implied warranty of fitness (Civil Code § 1792.1), in which a consumer may sue for breach of these warranties (Civil Code § 1791.1(d)). (*Id*. at 200.) The Court acknowledged that the Act provided a distinct provision applying to used products under Civil Code section 1795.5(a) as long as an express warranty is given at the time of sale, while also providing for implied warranties of merchantability and fitness by the distributor or retailer seller under section 1795.5(c). (*Id*. at 200-201.)

A. 3rd Cause of Action (Section 1793.2(a)(3))

Section 1793.2(a)(3) provides: "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall…(3) Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." As stated previously, "consumer goods" is defined as "any ***new*** product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables. ‘Consumer goods’ shall include new and used assistive devices sold at retail.” (*Id*. at § 1791(a).) This does not use the definition of new motor vehicle under section 1793.22(e) but instead uses the general definition of “consumer goods” which applies to new products. As Plaintiff has not pled a section 1793.2(a)(3) claim against FCA as manufacturer and the Complaint does not allege facts making FCA the distributor or retail seller responsible under other applicable sections, **the court grants the motion.**

B. 2nd Cause of Action (Section 1793.2(b))

Section 1793.2(b) states:

> Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a *reasonable time* by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay.

While “consumer goods” is not used here, there is no definition of “goods” alone. (See Civil Code § 1791.) As such, presumably as with section 1791(a), “consumer goods” is implied. This also requires a new good or new vehicle. Plaintiff has not pled facts bringing FCA within the applicable manufacturer remedy. **The court grants the motion.**

C. 1st Cause of Action (Section 1793.2(d))

Section 1793.2(d)(1) is the general provision for replacement of goods or reimbursement of the purchase price due to an inability of the manufacturer to service or repair the goods to conform to the applicable express warranties. Section 1793.2(d)(2) applies specifically to new motor vehicles as defined under section 1793.22(e)(2). As section 1793.2(d)(2) does not apply to used vehicles under *Rodriguez*, the question is whether section 1793.2(d)(1) applies. For the same reason as section 1793.2(b), **the court grants the motion.**

D. 4th Cause of Action (Implied Warranties)

Section 1791.1(a)-(b) define the implied warranties of merchantability and fitness, respectively. “Any buyer of consumer goods injured by a breach” may bring an action under section 1794. (*Id*. at § 1791.1(d).) Section 1794(a) also provides: “Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal equitable relief." As these sections clearly use "consumer goods," it is intended to apply to new vehicles.

Section 1795.5 states: "Notwithstanding the provisions of subdivision (a) of Section 1791 defining consumer goods to mean 'new' goods, the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers under this chapter except…." Section 1795.5 provides remedies for used consumer goods sold with an express warranty a remedy against the distributor or retail seller. "Distributor" is defined as "any individual, partnership, corporation, association, or other legal relationship that stands between the manufacturer and the retail seller in purchases, consignments, or contracts for sale of consumer goods." (*Id*. at § 1791(e).) "Retail seller" is defined as "any individual, partnership, corporation, association, or other legal relationship that engages in the business of selling or leasing goods to retail buyers." (*Id*. at § 1791(*l*).) Thus, if Plaintiff cannot plead a "new vehicle," she has a remedy for the implied warranties against the distributor or retail seller. Here, Plaintiff has pled that Defendant FCA is in the business of manufacturing, distributing and selling automobiles. (Complaint ¶ 4.) **As such, the court denies the motion as to the 4th cause of action.**

E. 5th Cause of Action (Negligent Repair)

Civil Code §1796.5 provides: "Any individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner." Despite the Legislature adding this section in 1978, the parties have identified no published California authority addressing an independent private cause of action under section 1796.5. There is no indication that the Legislature created a remedy for a violation.

As explained by one court:

> The general rule is that "[f]or every wrong there is a remedy." (Civ.Code, § 3523.) In accordance with that principle, "[t]he violation of a statute gives to any person within the statute's protection a right of action to recover damages caused by its violation." [Citations.] "Where a new right is created by statute, the party aggrieved by its violation is confined to the statutory remedy if one is provided [citation]; otherwise any appropriate common law remedy may be resorted to." [Citations.] A private right of action is an appropriate remedy when it is " 'needed to assure the effectiveness of the provision....' "

(*Faria v. San Jacinto Unified School Dist*. (1996) 50 Cal.App.4th 1939, 1947.) On these allegations, section 1796.5 supplies or informs the duty underlying Plaintiff's common-law negligent-repair claim.

Negligent repair is a form of negligence. "In order to state a cause of action for negligence, the complaint must allege facts sufficient to show a legal duty on the part of the defendant to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." (*Bellah v. Greenson* (1978) 81 Cal.App.3d 614, 619.) "Ordinarily, negligence may be alleged in general terms, without specific facts showing how the injury occurred, but there are 'limits to the generality with which a plaintiff is permitted to state his cause of action, and ... the plaintiff must indicate the acts or omissions which are said to have been negligently performed. He may not recover upon the bare statement that the defendant's negligence has caused him injury.'" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 527.)

Here, no facts are alleged other than Defendant breached its duty and failed to perform the repairs. (Complaint, ¶¶ 60-62.) This is not sufficient. **Accordingly, the court grants the motion.**

F. 6th Cause of Action (Fraudulent Inducement-Concealment)

Concealment requires: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.) As concealment is a species of fraud, it must also be pled with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.) Less specificity is required where the defendant necessarily possesses the information. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216.)

The case of *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 addressed the sufficiency for concealment for pleading purposes in fraud in a lemon law case. The *Dhital* court found that it was sufficient that plaintiffs alleged a transmission defect in numerous vehicles, including the plaintiff's, the defendant knew of the defect and the hazards they posed, defendant had exclusive knowledge of the defect and failed to disclose that information, defendant intended to deceive plaintiffs by concealing known defects, the plaintiffs would not have purchased the car if they had known of the defects, and they suffered damages on the sums paid to purchase the vehicle. (*Id*. at 843-844.)

Here, Plaintiff pleads an engine defect that serves the same pleading function as the transmission defect in *Dhital*. Specifically, Plaintiff pleads that the Vehicle was equipped with a defective 3.6-liter engine capable of causing loss of power, stalling, rough running, engine misfires, and potentially a non-collision fire. (Complaint, ¶¶ 15-17.) The Complaint pleads that Defendant knew about the issues, but consumers did not, as it was provided by pre-production and post-production testing data, consumer complaints, aggregate warranty data, testing and other internal information (*Id*., ¶¶ 18-20,23.). It pleads that Defendant concealed the defect (*Id*., ¶¶ 20, 25); and Plaintiff would not have purchased the Vehicle had the defect been disclosed. (*Id*., ¶¶ 21, 24, 68-70). Finally, Plaintiff alleges damage. (*Id*., ¶¶ 24, 70-71.)

As explained in *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311: " 'There are "four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts." ' " The last three require an evidence of some transaction, i.e. direct dealings between the plaintiff and the defendant. (*Id*. at 311-312.) The plaintiff had sued her doctor, the manufacturer and a supplier regarding the malfunction of a medical device (providing cold therapy). (*Id*. at 286.) The plaintiff had rented the device from a supplier. (*Id*. at 287.) The court found that there was no duty to disclose because there was no relationship between the plaintiff and the manufacturer, no evidence that the manufacturer knew that the plaintiff even had the device (since she obtained it from a supplier), and that there was no evidence that the manufacturer advertised to the public. (*Id*. at 314.)

In *Dhital*, supra, 84 Cal.App.5th at 844, the court found a relationship for pleading purposes based on allegations that the plaintiffs purchased a car from the dealership backed by an express warranty, and that the authorized dealership was an agent of the manufacturer. Here, the complaint alleges that Plaintiff entered into a warranty contract with Defendant FCA on 10/15/21. (Complaint, ¶¶ 7-8.) It alleges interaction with FCA sales representatives and marketing materials. (*Id*., ¶ 21.) Defendant has been unable to repair the vehicle. (*Id*., ¶ 40.) That demonstrates a transactional relationship for pleading purposes. As discussed above, Plaintiff pled exclusive knowledge.

Defendants' argument that the economic loss rule bars the fraud claim is premature. The economic loss rule requires a purchaser whose product is not working properly be limited to a contract remedy; to avoid the economic loss rule, the purchaser must "demonstrate harm above and beyond a broken contractual promise." (*Robinson Helicopter Co., Inc. v. Dana Corp*. (2004) 34 Cal.4th 979, 988.) This is to avoid contract and tort law from "dissolving one into the other." (*Ibid*.) This loss rule does not bar a fraud claim merely because the plaintiff also has contractual remedies. Fraudulent inducement is independent of the subsequent warranty obligations because the alleged wrongful conduct occurred before or at the time of purchase and induced Plaintiff to enter the transaction.

Here, Plaintiff does not merely allege that FCA failed to repair the Vehicle. Plaintiff alleges that FCA intentionally *concealed* a material defect to induce Plaintiff to purchase a Vehicle she otherwise would not have purchased. That alleged duty to disclose is independent of FCA's later contractual duty to repair the Vehicle. The fact that Plaintiff seeks economic damages does not, by itself, eliminate an adequately pled fraud claim. **The court denies the motion.**

G. Statute of Limitations

Defendant contends that the claims are barred because they arose from the date of purchase on 10/15/21. That is not what the pleading alleges. It alleges that the defect was not reasonably discoverable before purchase, and that Plaintiff discovered Defendants' wrongful conduct shortly before filing the complaint as the Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful repair attempts. (Complaint ¶¶ 22, 36-37, 66(c).)

"The discovery rule provides that the accrual date of a cause of action is delayed until the plaintiff is aware of her injury and its negligent cause." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1109.) "A plaintiff is held to her actual knowledge as well as knowledge that could reasonably be discovered through investigation of sources open to her." (*Ibid*.)

The fact that the defect may have existed at the time of the sale does not mean that Plaintiff was aware of such fact. That does not demonstrate, on pleading, that Plaintiff was aware that the defects were not repairable. Furthermore, Plaintiff alleges various tolling doctrines (Complaint ¶¶ 36-37). Therefore, the pleading presents a potential limitations issue but does not establish that the claims accrued on the purchase date.

The court therefore declines to dismiss on limitations grounds at this stage.

H. Punitive Damages

As Defendants did not separately notice a motion to strike under CCP §§ 435 and 436, the request to strike punitive damages is denied as procedurally improper.

I. Leave to Amend

Plaintiff has the burden to articulate a basis to amend. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.) Here, Plaintiff identified potentially curative facts such as the certified pre-owned or other warranty issued with the sale. **Accordingly, the court will allow 21 days leave to amend.**

<u>Summary:</u>

Grant the motion as to the 1st, 2nd, 3rd, and 5th causes of action. Deny as to the 4th and 6th causes of action. To the extent that defendants request matters be stricken from the complaint, the request is improper as it was not made by way of a separate motion to strike. **21 days leave to amend is granted.**

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506010	LIU vs MASCOT INTERNATIONAL LOGISTICS INC.	MOTION TO STRIKE CROSS-COMPLAINT
CVRI2506010	LIU vs MASCOT INTERNATIONAL LOGISTICS INC.	DEMURRER ON CROSS-COMPLAINT

Tentative Ruling:

The Demurrer and Motion to Strike are unopposed. Accordingly, the Demurrer is sustained without leave to amend and the motion to strike is granted in all respects. Moving party is to give notice of ruling within 10 days of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507318	VILLELA vs GONZALEZ	MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE

Tentative Ruling:

Moving party: Plaintiff Leticia Villela, Co-Trustee of the Gonzalez-Villela Trust dated May 26, 2016

Responding party: Defendant Noel Gonzalez, Co-Trustee of the Gonzalez-Villela Trust dated May 26, 2016

On December 30, 2025, Plaintiff Leticia Villela, Co-Trustee of the Gonzalez-Villela Trust dated May 26, 2016 ("Plaintiff") filed a verified Complaint against Defendant Noel Gonzalez, Co-Trustee of the Gonzalez-Villela Trust dated May 26, 2016 ("Defendant") and Agustin Rodriguez Beltran for partition of five real properties located at 1654 Heartland Way, Corona, CA 92881 ("Heartland Property"); 3001 Wendell Way, Riverside, CA 92507 ("Wendell Property"); 1642 Sycamore St, Perris, CA 92570 ("Sycamore Property"); 1015 Bascomb Dr, Riverside, CA 92507 ("Bascomb Property"); and 6246 Heatherwood Dr, Jurupa Valley, CA 92509 ("Heatherwood Property").

In the Complaint, Plaintiff alleges that she and Defendant are no longer married. Plaintiff alleges that she owns an undivided 25% interest in the Heatherwood Property and an undivided 50% interest in the Heartland Property, Wendell Property, Sycamore Property, and Bascomb Property (collectively, "the Properties"). Plaintiff alleges that Defendant also owns an undivided 25% interest in the Heatherwood Property, and an undivided 50% interest in the other Properties. Beltran owns the remaining undivided 50% interest in the Heatherwood Property.

On August 7, 2026, Plaintiff dismissed Beltran from the action with prejudice.

Plaintiff now moves for interlocutory judgment of partition of the four Properties based on the pleadings, and for the Court to appoint Matthew L. Taylor, Esq. as a partition referee to effectuate the interlocutory judgment.

In opposition, Defendant argues that the motion for interlocutory judgment of partition should be denied because he is the majority owner in the Properties, as Plaintiff did not contribute anything toward the Bascomb, Sycamore, and Heatherwood properties. Defendant further contends that he has filed a Cross-Complaint requesting a constructive trust over the Properties at issue.

In reply, Plaintiff clarifies that she is requesting a partition in kind, not by sale, and repeats the arguments in the underlying motion.

Analysis

Plaintiff's motion is premature, as it asks the Court to skip the procedural nature of a partition action and go straight to interlocutory judgment under C.C.P. § 872.720. The statutes provides that "[t]he interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action." (C.C.P. § 872.610.)

Significantly, C.C.P. § 872.710(a) provides: "***At the trial***, the court shall determine whether the plaintiff has the right to partition." There has been no trial in this case. Accordingly, Plaintiff is treating this as a dispositive motion where none exists.

Under C.C.P. § 872.030, the rules of civil procedure apply to partition actions unless they are inconsistent with the partition statutes. "No partition can be had until the interests of all the parties have been ascertained and settled by a trial." (*Bacon v. Wahrhaftig* (1950) 97 Cal.App.2d 599, 603.) Plaintiff has not brought a summary judgment motion, and the Court has not yet ascertained the rights of the parties at this early stage, especially as Defendant contests Plaintiff's characterization of the parties' interests in the Properties and is attempting to file a Cross-Complaint against Plaintiff. While the parties both refer to the allegations set forth in Defendant's Cross-Complaint, the Court Clerk returned the Cross-Complaint unprocessed because the party names did not match those on the Complaint. Thus, there is currently no Cross-Complaint on file.

Given the above, Plaintiff's motion for interlocutory judgment and appointment of a referee is premature and is denied without prejudice.